

GENERAL PROPERTIES OF THE OFFICE OF TRUSTEE.

FROM the *estate* of the trustee we pass on to the consideration his *office*, and upon this subject we shall, in the first place, investigate the *general* properties of the office, as, *First*. A trustee having once accepted the trust cannot afterwards renounce it. *Secondly*. He cannot delegate it. *Thirdly*. In the case of co-trustees the office must be exercised by all the trustees jointly. *Fourthly*. On the death of one trustee there is survivorship, that is, the trust will pass to the survivors or survivor. *Fifthly*. One trustee shall not be liable for the acts of his co-trustee. *Sixthly*. A trustee shall derive no personal benefit from the trusteeship.

First. A trustee who has accepted the trust cannot afterwards renounce.¹

1. **Trustee cannot renounce after acceptance.**—It is a rule, without any exception, that a person who has once undertaken the office, either by actual or constructive acceptance, cannot discharge himself from liability by a subsequent *renunciation*. The only mode by which he can obtain a

¹ Having accepted the trust, the trustee cannot afterwards renounce it or free himself from the responsibility of its management; *Shepherd v. M'Evers*, 4 Johns. Ch. 136; 8 Am. Dec. 561; *Armstrong v. Morrill*, 14 Wall. 138; *Cruiger v. Halliday*, 11 Paige, 314; *Perkins v. McGavock*, 3 Hay. 265; *Drane v. Gunter*, 19 Ala. 731; *Jones v. Stockett*, 2 Bland. 409; except in accordance with the terms of the trust, by consent of the parties in interest, or by a decree of court; *Ibid.*, *Re Bernstein*, 3 Redf. 20; *Diefendorf v. Spraker*, 10 N. Y. 246. In the United States there are statute regulations in reference to trustees, the care of the estate and the appointment of new trustees. It is questionable whether the heir of one named as trustee and who has never signified what action he would take, can renounce the trust. The surviving trustee may disclaim, if his co-trustee never accepted the trust. A trustee would not have to convey until he had been reimbursed for all sums paid out; *Saunders v. Webber*, 39 Cal. 287; *Barker v. Barker*, 14 Wis. 131; neither can an executor renounce. See note on disclaimer.